OPEN LETTER · EYE ON SHOALHAVEN COUNCIL

# Informal GIPA request to Shoalhaven Council for the 2026 staff survey results

Sent 25 October 2026 · To Shoalhaven City Council · Response requested by 8 November 2026

Stephen Prothero 74 Canberra Crescent BURRILL LAKE NSW 2539
25 October 2026
Council reference: 78113E (D26/408659)
Shoalhaven City Council – Information Access By online informal request form, with a copy to council@shoalhaven.nsw.gov.au
Informal request for access to information – 2026 staff survey results Government Information (Public Access) Act 2009, s 8
Basis for this request. This request is made under the arrangement set out in the Chief Executive Officer's letter to me of 27 September 2026 (Council reference 78113E, D26/408659), headed "Review of Restrictions on Correspondence with Council". In that letter the CEO advised that Council "will accept informal requests for information from you for a trial period of six months, after which we will further review resources", that such requests are to be limited to specific existing documentation held by Council, and that they are to be made using the online form on Council's website. The CEO's letter of 19 October 2026 (reference 78113E, D26/457888) confirms that the two-inquiries-a-month limit on correspondence does not apply to informal GIPA requests made via the online form during the trial period. This request is made in reliance on those letters and on section 8 of the Government Information (Public Access) Act 2009.
1. The information requested
I request access to the following existing documents held by Council, for the period [INSERT DATE RANGE AS PREVIOUSLY REQUESTED]:
(a) the report of the results of the most recent Council staff survey for 2026 (however titled – for example an employee engagement, culture, satisfaction or wellbeing survey) dealing with employment and related matters as Council staff, including the aggregate results and any accompanying analysis, commentary or comparison with earlier surveys;
(b) the survey questionnaire, so that the results can be read against the questions asked, together with any statement of the response rate; and
(c) any summary, briefing or presentation of those results provided to the Chief Executive Officer, the Executive Leadership Team or councillors.
Each of these is a specific document that already exists. No new document needs to be created.
2. Who is asking, and why it matters
I am an independent public interest journalist living in the Shoalhaven. I publish Eye on Shoalhaven Council through Substack, a Facebook group, YouTube and the podcast From the Council Gallery, and I have approximately 4,900 subscribers in the City. My reporting

examines Council meetings, business papers, finances and governance, and reports on information obtained through the GIPA Act. The information requested will be used to report to that readership.

3. The public interest in disclosure

Section 5 of the Act establishes a presumption in favour of disclosure, and section 8(1) authorises release in response to an informal request unless there is an overriding public interest against disclosure. Section 12(1) recognises a general public interest in favour of disclosure, and section 3(1)(c) provides that access is to be restricted only where there is an overriding public interest against it. The following considerations add specific weight in this case.

Staffing is a live public issue. How Council's people feel about their employment bears directly on its capacity to deliver services, retain skilled staff and control the costs of turnover and vacancies. Residents are entitled to know whether the workforce delivering their services is stable and confident.

Rates. The community is being asked to consider potential rate increases. Whether the organisation is being managed in a way that retains and engages staff is directly relevant to whether ratepayers are getting value for what they already pay.

An HR matter of serious public concern. Council is the subject of an investigation by the Office of Local Government under section 430 of the Local Government Act 1993. The terms of reference published by the Office concern the recruitment of the General Manager, the keeping of recruitment records, the management of conflicts of interest on the recruitment panel, and Council's recruitment policies, procedures and training. To my knowledge the findings have not been published. I do not suggest the survey bears on those findings. The point is that employment practices at Council are the subject of formal external scrutiny, and staff views on how they are treated at work are information the public cannot obtain from any other source.

I submit that, taken together, these considerations are strong and specific, and that they favour full release.

4. Anticipated grounds for declining, and why they should not succeed

(a) Section 8(3) – Council cannot be required to consider an informal request. Council has itself decided, in the 27 September and 19 October letters, to accept informal requests of this kind during the trial period. Section 15(a) requires agencies to exercise their functions so as to promote the object of the Act, which is to open government information to the public. This is a request for one clearly identified, existing set of documents, in the form the CEO's letter prescribes.

(b) Personal information (Table to s 14, clause 3(a)). The documents requested are aggregate survey results about the workforce as a whole, not information about any identifiable individual. Where survey data is reported only in grouped form, no individual's personal information is revealed. If Council considers that a particular table or free-text entry could identify a person, the Act's mechanism is to delete that matter

from a copy of the record (section 8(5)), not to withhold the whole document.
(c) Risk of harm, harassment or intimidation (clause 3(f)). This consideration requires that disclosure expose a person to a real risk. There is no identified person to whom aggregate results could expose such a risk.
(d) Prejudice to a deliberative process, or to the effective exercise of Council's functions (clauses 1(e) and 1(f)). Survey results are a statement of fact about staff responses, not a deliberation, opinion, advice or recommendation about a decision still to be made. Any management analysis of the results, to the extent it contains advice, can be considered separately without withholding the results themselves. Council must also be able to show a real and substantial prejudice to its functions, not a general preference for privacy. Publication of staff views does not prevent management from acting on them; if anything, accountability for the response strengthens that process.
(e) Embarrassment, loss of confidence, or the risk that the results will be misunderstood. Section 15(c) provides that the fact that disclosure might cause embarrassment or a loss of confidence must not be taken into account, and section 15(d) provides that the possibility that information might be misinterpreted or misunderstood is irrelevant. Poor results, if there are any, are the strongest reason for disclosure rather than an argument against it.
(f) Confidentiality of the survey, or the interests of a survey provider (clause 4 and related considerations). Any assurance given to staff concerns the confidentiality of individual responses, which I am not seeking. It does not extend to the aggregate results, which Council commissioned and holds for its own management purposes. A commercial interest of a third-party provider cannot reasonably be engaged by the result figures for Council's own workforce. An undertaking to staff or a provider cannot displace the Act.
(g) Burden. The request is for a small number of existing documents that can be located and provided electronically with little effort, and it falls within the single-topic, specific-document limits set out in the CEO's letter.
(h) The results are not yet final, or have not yet been presented to staff or councillors. The Act does not exempt information because it has not yet been presented internally, and I ask for the results as they exist at the date of Council's decision. If a final version is imminent, I ask that Council say so and provide it when it is available.
5. What I ask
I ask that Council release the documents in full, by email to , in electronic form. If Council decides to withhold any part of them, I ask that it tell me in writing which specific public interest consideration it relies on for each part withheld, why that consideration is said to outweigh the considerations in favour of disclosure identified above, and which parts it is releasing. I ask for a response within 14 days. I reserve all rights under the Act, including to make a formal access application and to seek review of any decision.
Yours sincerely
Stephen Prothero